

Terms of Service

An agreement between you and Lordsway Energy Limited governing your use of Brandosse.

EFFECTIVE DATE	LAST UPDATED	GOVERNING LAW
[EFFECTIVE DATE]	[EFFECTIVE DATE]	Nigeria — Lagos State courts

Please read these Terms carefully. They limit our liability, allocate responsibility for the content you publish, and place strict conditions on material you ask us to retrieve from a link. Defined terms appear in section 2.

Summary, not a substitute. You own what you upload and what the Service generates for you. We do not train models on your content. Credits are prepaid, consumed when a job starts, and expire 12 months after purchase. You are the publisher of everything you post, and you may only submit links to video you own. The sections below govern; this box does not.

CONTENTS

1. Agreement to these Terms

2. Definitions

3. Eligibility and your Account

4. The Service

5. Plans, Credits and payment

6. Refunds and cancellation

7. Your Content

8. Source Material retrieved from URLs

9. AI Output

10. Acceptable use

11. Connected Accounts and platforms
12. Our intellectual property

13. Confidentiality

14. Availability

15. Suspension and termination

16. Disclaimers

17. Limitation of liability

18. Indemnity

19. Governing law and disputes

20. Changes to these Terms

21. General

22. Contact

1. Agreement to these Terms

1.1 These Terms of Service (“**Terms**”) are a binding agreement between you and Lordsway Energy Limited, a private company limited by shares registered in Nigeria under registration number [RC NUMBER], of 8 Venia Place, Lekki Phase 1, Lagos, Nigeria (“**Brandosse**”, “we”, “us”, “our”).

1.2 They govern your access to and use of Brandosse at brandosse.com and all related applications, APIs and services (together, the “**Service**”).

1.3 By creating an account, clicking “Create Account”, or using the Service, you accept these Terms, our Acceptable Use Policy and our Privacy Policy, each incorporated here by reference. If you do not accept them, do not use the Service.

1.4 If you are accepting on behalf of a company or other organisation, you represent that you are authorised to bind it, and “you” means that organisation.

2. Definitions

Account – your registered user account on the Service.

Workspace – a personal or organisation area in which Content is created and stored.

Your Content – anything you upload, submit, connect or provide: brand assets, logos, images, video files, text, prompts, briefs, links and credentials for Connected Accounts.

Source Material – third-party media you direct the Service to retrieve from a URL you supply, for example a video you ask us to clip.

Output – captions, images, videos, plans, schedules, scores and other material the Service generates, in whole or part, using artificial intelligence, in response to Your Content.

Connected Account – a third-party social media account you authorise the Service to post to or read from.

Credits – the prepaid units the Service consumes when you run a generation, render or publishing action.

3. Eligibility and your Account

3.1 You must be at least 18 years old to use the Service. The Service is not directed at children and we do not knowingly collect their personal data.

3.2 You must provide accurate registration information and keep it current.

3.3 You are responsible for all activity under your Account and for keeping your credentials secure. Tell us at security@brandosse.com without undue delay if you suspect unauthorised access.

3.4 One person or organisation per Account. Do not share, sell or transfer an Account.

4. The Service

4.1 What the Service does. The Service helps you produce and schedule social media content. Depending on your plan and workspace it may let you store a brand kit; generate captions, images and video clips using third-party AI models; plan and schedule posts on a calendar; connect social media accounts; and publish or queue posts to those accounts.

4.2 The Service is a tool, not an adviser. Output is generated automatically. We do not review it before it reaches you, and we do not verify its accuracy, originality, legality or suitability. You are solely responsible for reviewing everything before you publish it.

4.3 Beta and limited features. No feature of the Service is simulated, mocked or non-functional: every capability offered performs the action it describes. If we later introduce a feature that is simulated or in preview, it will be labelled as such in the interface and named in this section before you can use it. Such features are provided without any commitment, may change or be withdrawn at any time, and are excluded from any availability commitment.

4.4 Connection limits. The number of Connected Accounts available to you is limited by your plan and by the capacity of our upstream publishing provider. On the free plan you may connect one social account. Paid plans allow more, as stated on the pricing page at the time you subscribe. We may cap or queue connections and will tell you the current limit in the Service.

4.5 Changes. We may add, change or remove features. If we materially reduce a feature you are paying for, section 20 applies.

5. Plans, Credits and payment

5.1 Charges. Paid plans and Credit packages are described in the Service. Prices are stated in Nigerian Naira (NGN) and are inclusive of Nigerian VAT at 7.5%.

5.2 Payment processing. Payments are processed by Paystack. We do not store your full card details. Your use of the payment processor is also subject to its own terms.

5.3 Credits. Credits are a prepaid licence to use compute capacity. They are not money, not a deposit, not redeemable for cash, and carry no interest.

5.4 Consumption. Credits are consumed when a job starts, not when it succeeds to your satisfaction. A generation you dislike has still consumed compute and is not refundable on that basis. Where a job fails because of a fault on our side, we will restore the Credits.

5.5 Expiry. Purchased Credits expire 12 months after the date of purchase. Free or promotional Credits granted as a monthly allowance expire at the end of the month in which they are granted and are replaced by the following month's allowance; they do not accumulate.

5.6 Free allowance. Any free Credits or trial allowance is granted at our discretion, is personal to you, and may be changed or withdrawn for future grants at any time. Abuse of free allowances – including creating multiple Accounts to obtain them – is a breach of these Terms.

5.7 Failed payment. If a payment fails or is charged back we may suspend paid features until it is resolved.

5.8 Price changes. We may change prices with at least 30 days of notice, effective at your next renewal or purchase. Credits already purchased are unaffected.

6. Refunds and cancellation

6.1 Our refund position is set out in the Refund and Credits Policy, which forms part of these Terms.

6.2 You may cancel a subscription at any time from the Service. Cancellation stops future renewals; it does not retroactively refund the current period unless the Refund and Credits Policy says otherwise.

6.3 Consumers in Nigeria. The Federal Competition and Consumer Protection Act 2018 gives you rights that these Terms do not and cannot remove – in particular the right to a refund where a service is not rendered as agreed. No term of these Terms operates to waive that right, and our Refund and Credits Policy is intended to be more generous than that statutory minimum, not less.

6.4 Consumers outside Nigeria. You may have further statutory rights. Where a right to withdraw from a distance contract within 14 days applies to you, then by starting a generation, render or publishing job before that period ends you expressly ask us to begin performance immediately and acknowledge that you lose the right of withdrawal as to the Credits that job consumes. Credits you have not consumed remain refundable.

7. Your Content

7.1 You keep ownership. You retain all rights in Your Content. These Terms transfer no ownership of it to us.

7.2 Licence to us. You grant us a worldwide, non-exclusive, royalty-free licence to host, store, copy, transmit, reformat, transcode and display Your Content, and to transmit it to the third-party providers listed in our Subprocessors list, strictly to the extent necessary to operate the Service for you, to publish on your instruction, and to comply with law. This licence ends when you delete the relevant Content or your Account, subject to section 15.4.

7.3 Your warranties. You represent and warrant that you own or have all rights, licences and consents needed for Your Content, and that our processing of it on your instruction will not infringe any third-party right or breach any law. This includes model and property releases for identifiable people and places, and rights in any music, footage, logo or typeface you supply.

7.4 No training on Your Content by us. We do not train any model on your content, prompts or Output, and we do not sell, license or otherwise make them available to anyone for training.

Your content is transmitted to the AI providers listed in our Subprocessors list solely to generate your Output. We can only pass on what those providers commit to, so we state each position rather than making a single blanket promise. Positions verified against their published terms on 25 August 2026:

- **Anthropic** – contractually undertakes not to train on commercial API inputs or outputs, and deletes them within 30 days.
- **Groq** – contractually prohibited from using inputs or outputs for training or fine-tuning; does not retain inference inputs and outputs by default.
- **fal.ai** – its published privacy policy does not address model training, and we have not obtained written confirmation. Until we have, you should not assume any training restriction applies to material sent to image, video, editing or upscaling features. Generated media is held on fal.ai's CDN for a minimum of 7 days.

We will update this section, and the Subprocessors list, if any of these positions changes.

7.5 Backups. You are responsible for keeping your own copies of anything important. We are not an archival service.

8. Source Material retrieved from URLs

This section is deliberately strict. You may only submit a link to video you own, on a channel we have verified you control. For anything else, upload the file.

8.1 Some features let you paste a link and have the Service retrieve the media at that link for processing. We accept a link only where the channel or account hosting that video is one you have connected to Brandosse and which we have verified you control. Video published by anyone else is not accepted from a link, in any circumstance – including video you have licensed, video you have been given permission to use, and video that is publicly accessible without restriction. If you hold rights in video that you cannot verify this way, upload the file instead. Uploading is always available, is not restricted by this section, and is governed by section 7.

8.2 When you submit such a link you represent and warrant that:

- a. you own the media at that URL, or hold a written licence covering the copying, downloading, editing and republication you are asking us to do;
- b. your instruction does not breach the terms of service of the site the media is hosted on;
- c. the media contains no third-party rights you have not cleared, including music, footage, trademarks and personal likenesses; and
- d. the media is lawful and does not breach our Acceptable Use Policy.

8.3 We act purely on your instruction as a technical intermediary. We do not select, curate or verify Source Material.

8.4 We may refuse, cancel or delete any retrieval request, with or without reason, and we may block domains entirely.

8.5 Retrieved Source Material is cached for up to 24 hours after the job reaches a final state and then deleted.

8.6 Your indemnity at section 18 applies in full to Source Material, and it is the clause most likely to be invoked. If you are not certain you have the rights, upload your own file instead.

9. AI Output

9.1 Ownership. As between you and us, and conditional on your Account being in good standing and any amounts due having been paid, we assign to you all right, title and interest we may hold in the Output generated for you, and we make no claim of ownership over it. You may use Output for any lawful purpose, including commercially, including after you stop using the Service.

We must be equally clear about the limit of that assignment: we can only assign rights we actually have. Material generated by an AI model may attract limited or no copyright protection in your jurisdiction – in several jurisdictions, material produced without sufficient human authorship is not protectable at all. We therefore make no representation that Output is protectable, that you can stop anyone else using identical or similar material, or that the same or similar Output has not been and will not be generated for another user. This section transfers whatever we have; it does not warrant that what we have is worth anything. Section 9.2 governs originality and infringement.

We will not use your Output as a portfolio piece, case study, or marketing example without your prior written consent.

9.2 No warranty of originality or accuracy. AI models are probabilistic. Output may be inaccurate, misleading, offensive, or substantially similar to material generated for someone else or to existing third-party work. We do not warrant that Output is original, non-infringing, accurate, or fit for any purpose, and we do not warrant that it can be protected by copyright in your jurisdiction.

9.3 You must review before publishing. You are the publisher. Every factual claim, price, statistic, legal or health statement, hashtag, mention and image in Output is your responsibility once you post it.

9.4 Likeness and real people. You may generate depictions of yourself – your own face, body or voice – and, with their documented written consent, members of your own team or organisation whose likeness you are authorised to use. You may not generate, or attempt to generate, a depiction of any other real, identifiable person. This includes public figures, celebrities, politicians, competitors, and private individuals, whether or not the depiction is flattering, and whether or not it is labelled as AI-generated. If the Service produces an image resembling a real person you did not set out to depict, that is an artefact of how the model works, not permission to use it. Do not publish it.

9.5 Disclosure. You are responsible for any AI-disclosure labelling required by the platform you publish to or by law in your market.

9.6 Third-party models. Output is produced by the model providers listed in our Subprocessors list. Your use of the Service is also subject to their usage policies, and we pass their restrictions through to you.

10. Acceptable use

You must comply with the Acceptable Use Policy. Breach of it is a material breach of these Terms and may result in immediate suspension under section 15.

11. Connected Accounts and third-party platforms

11.1 When you connect a social media account you authorise us to act on your behalf on that platform, within the scope you approve, until you disconnect.

11.2 Each platform has its own terms, rate limits, content rules and API restrictions. You remain bound by them. Nothing in the Service overrides them.

11.3 Platforms change, deprecate and revoke API access without notice, and may suspend accounts for automated posting. We are not responsible for a platform rejecting, delaying, throttling, removing or de-ranking your content, or for a platform suspending your account.

11.4 We may disconnect an account that repeatedly fails, that a platform tells us to disconnect, or whose behaviour puts our provider access at risk.

11.5 Scheduling is best-effort. A scheduled time is a target, not a guarantee.

12. Our intellectual property

12.1 The Service, including its software, design, brand and documentation, is owned by us and our licensors. Except for the rights expressly granted here, no licence is given.

12.2 You must not copy, modify, reverse engineer, scrape, resell, or use the Service to build a competing product, or attempt to extract its models, prompts or system instructions.

12.3 Feedback. If you send us suggestions we may use them freely, without obligation or compensation.

13. Confidentiality

Each party will protect the other's non-public information disclosed in connection with the Service with at least reasonable care, and use it only for the purposes of these Terms.

14. Availability

14.1 We make no uptime commitment. The Service is provided on a best-effort basis. We do not offer a service level agreement, service credits, or any guaranteed availability figure, and none should be inferred from our performance in practice.

14.2 We may take the Service down for maintenance, and will try to give notice for planned downtime.

14.3 The Service depends on third parties – hosting, model providers, publishing providers, payment processors. Their outage is not our breach.

15. Suspension and termination

15.1 You may stop using the Service and delete your Account at any time from Settings.

15.2 We may suspend or terminate your Account immediately if you materially breach these Terms or the Acceptable Use Policy, if we are required to by law or by an upstream provider, or if your use creates a legal, security or financial risk to us or other users.

15.3 Where the breach is capable of cure and the risk allows, we will give you notice and a chance to fix it first.

15.4 On termination your right to use the Service ends. We will delete or de-identify Your Content within 30 days, except where we must keep records for legal, tax, security or dispute purposes.

15.5 If we terminate your Account for a reason other than your breach, we will refund unused Credits and any unexpired prepaid period on a pro-rata basis. If we terminate for your breach, section 6 of the Refund and Credits Policy applies.

15.6 Sections 7.3, 9, 12, 13, 16, 17, 18, 19 and 21 survive termination.

16. Disclaimers

16.1 To the fullest extent permitted by law, the Service and all Output are provided “as is” and “as available”, without warranties of any kind, express or implied, including merchantability, fitness for a particular purpose, non-infringement, accuracy, and quiet enjoyment.

16.2 We do not warrant that the Service will be uninterrupted, secure or error-free, that Output will be accurate or original, or that the Service will produce any particular commercial result – reach, engagement, followers, or revenue.

16.3 Nothing in these Terms excludes liability that cannot lawfully be excluded, including for death or personal injury caused by negligence, fraud, or the statutory rights of consumers.

17. Limitation of liability

17.1 To the fullest extent permitted by law, neither party is liable for indirect, incidental, special, consequential or punitive damages, or for loss of profits, revenue, goodwill, data, or business opportunity, however caused.

17.2 Our total aggregate liability arising out of or relating to the Service in any twelve-month period is limited to the greater of (a) the total amount you paid us in that period, or (b) ₦150,000.

17.3 Sections 17.1 and 17.2 do not limit your obligations under section 18, or amounts you owe us under section 5.

17.4 These limits apply even if a limited remedy fails of its essential purpose.

18. Indemnity

18.1 You will defend, indemnify and hold us harmless against all claims, damages, losses, liabilities, fines and reasonable legal costs arising from:

- a. Your Content;
- b. Source Material you directed us to retrieve;
- c. your publication or use of Output;
- d. your breach of these Terms or the Acceptable Use Policy;

- e. your breach of a third-party platform's terms; and
- f. your infringement of any third-party right.

18.2 We will notify you of the claim, give you control of the defence (subject to our right to participate with our own counsel), and cooperate reasonably. You may not settle in a way that admits our liability without our consent.

19. Governing law and disputes

19.1 These Terms are governed by the laws of the Federal Republic of Nigeria, without regard to conflict-of-law rules.

19.2 The courts of Lagos State, Nigeria have exclusive jurisdiction over any dispute arising out of or relating to these Terms, and both parties submit to that jurisdiction.

19.3 Before starting formal proceedings, please contact us at legal@brandosse.com and give us 30 days to resolve the matter informally.

19.4 Nothing in this section deprives you of the protection of any mandatory consumer-protection law of the country in which you habitually reside, including any right to bring proceedings in your local courts that cannot lawfully be excluded. For consumers in Nigeria, the Federal Competition and Consumer Protection Act 2018, and the jurisdiction of the Federal Competition and Consumer Protection Commission, apply regardless of section 19.1.

20. Changes to these Terms

20.1 We may update these Terms. The current version is always at brandosse.com/terms with its effective date.

20.2 For material changes that reduce your rights or increase your obligations we will give at least 30 days of notice by email or in-product notice before they take effect.

20.3 Continuing to use the Service after the effective date accepts the change. If you do not accept it, stop using the Service and cancel; section 6 applies.

21. General

21.1 Entire agreement. These Terms, the Acceptable Use Policy, the Privacy Policy and the Refund and Credits Policy are the entire agreement between us on this subject and replace any prior understanding.

21.2 Assignment. You may not assign these Terms without our written consent. We may assign them to an affiliate or in connection with a merger, acquisition or sale of assets.

21.3 Severability. If a provision is unenforceable, it is limited or severed to the minimum extent necessary and the rest remains in force.

21.4 No waiver. Not enforcing a provision is not a waiver of it.

21.5 Force majeure. Neither party is liable for failure caused by events beyond its reasonable control.

21.6 Notices. We will send notices to your Account email. You send notices to legal@brandosse.com.

21.7 No third-party beneficiaries. Except for our affiliates and licensors under sections 16 to 18, no one else may enforce these Terms.

21.8 Relationship. Nothing here creates a partnership, agency, employment or joint venture.

22. Contact

REGISTERED OFFICE

Lordsway Energy Limited
8 Venia Place, Lekki Phase 1
Lagos, Nigeria
RC [RC NUMBER]

CONTACT

General – support@brandosse.com
Legal – legal@brandosse.com
Privacy – privacy@brandosse.com
Security – security@brandosse.com